

April 5, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 11169
(SEVENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain liquids, classed as Division 6.1 and Class 8 which are poisonous by inhalation, packaged in a UN6PA1 composite packaging in an outer wooden box. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.227(b) in that the packaging is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Amalgamet Canada, dated June 24, 2004, submitted in accordance with § 107.109 and additional information dated March 27, 2006.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Phosphorus oxychloride	8	UN1810	II Hazard Zone B
Phosphorus trichloride	6.1	UN1809	I Hazard Zone B
Titanium tetrachloride	8	UN1838	II Hazard Zone B
Toxic by inhalation liquid, corrosive, n.o.s. (germanium tetrachloride)	6.1	UN3390	I Hazard Zone B

7. SAFETY CONTROL MEASURES:

a. PACKAGING - The packaging authorized is comprised of three components. The exterior component is a compartmented wooden crate. The other two components are a UN6PA1 composite packaging (consisting of a glass inner receptacle within a cushioned stainless steel cylindrical outer packaging) and a cushioned plywood box. The volume of the glass inner receptacle may not exceed 20 liters. The closure of the inner receptacle consists of a Teflon valve system. Four plywood boxes are placed in each outer wooden crate.

b. TESTING - The packaging must meet the performance test requirements of 49 CFR 178 Subpart M at the Packing Group I performance level for a UN6PA1 composite container. After filling, each package must be tested as specified in the Amalgamet Canada procedure dated June 16, 1995 to assure that it is not leaking.

c. MARKING - Each outer wooden crate must be plainly marked in letters at least two inches in height on a contrasting background, "DOT-SP 11169".

d. Packagings permanently marked 'DOT-E 11169', prior to October 1, 2007, may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007, must be marked 'DOT-SP 11169'.

e. Shipping papers displaying 'DOT-E 11169' may continue to be used until October 1, 2007, provided the special permit remains valid.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Shipments must be made only in dedicated shipping containers (20 or 40 foot intermodal containers), without any intermediate pickup or delivery.

d. Packages may not be stacked (double decked) within the transport vehicle.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

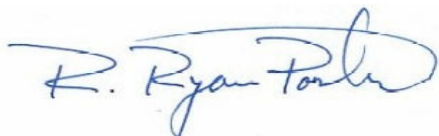
Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of

April 5, 2006

this special permit must notify the Associate Administrator for Hazardous Materials Safety -- OHMSPA, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "R. Ryan Forder", is written over a faint circular stamp.

for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: KFW/dl